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14ನೇ ಪುಟದ... 15.8...ದಸ್ತಾವೇಜಿನ ಒಂದನೇ ಪುಟ
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ಬೆಂಗಳೂರು, ಗಾಂಧಿನಗರ (ಹೆಬ್ಬಾಳ). ಬೆಂಗಳೂರು.

DEED OF DECLARATION OF TRUST

THIS DEED OF DECLARATION OF TRUST is made and entered into at Bangalore, this 19th day of August 2014.

BETWEEN

Professor Dipankar Chatterji, Indian Institute of Science, Bangalore - 560 012 (Hereinafter called and referred to as the **SETTLOR**) of the ONE PART;

AND

1. President, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*,

(Hereinafter referred to as "Chair" of the Trust, Professor Dipankar Chatterji the present incumbent).

2. Immediate Past President, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Ajay Kumar Sood, the present incumbent.
3. Treasurer, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor J. Srinivasan, the present incumbent.
4. Secretary, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Uday Maitra, the present incumbent.
5. Secretary, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Raghavan Varadarajan, the present incumbent.
6. Professor M.R.Satyanarayana Rao, Jawaharlal Nehru Centre for Advanced Scientific Research, Jakkur, Bangalore 560 064.
7. Professor S. Chandrasekaran, Indian Institute of Science, Bangalore 560 012.
8. Professor Ramakrishna Ramaswamy, University of Hyderabad, Hyderabad 500 046.
9. Dr S. Sivaram, National Chemical Laboratory, Pune 411 008.
10. Dr Chandrima Shaha, National Institute of Immunology, New Delhi 110 067.

(all of whom, jointly and collectively, hereinafter referred to as **THE TRUSTEES**, which expression shall unless repugnant to the context or meaning thereof be deemed to include, their executors, administrators, successors etc., of the surviving Trustees and the Trustees appointed or those may be appointed hereunder this deed for the time being and from time to time) OF THE OTHER PART;



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ಉಪನಿರ್ದೇಶಕರು (ಹೆಚ್ಚುವರಿ), ಬೆಂಗಳೂರು.



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ನೋಂದಣಿ ಹಾಗೂ ಮುದ್ರಾಂಕ ಇಲಾಖೆ
Department of Stamps and Registration

ಪ್ರಮಾಣ ಪತ್ರ

1957 ರ ಕರ್ನಾಟಕ ಮುದ್ರಾಂಕ ಕಾಯ್ದೆಯ ಕಲಂ 10 ಎ ಅಡಿಯಲ್ಲಿಯ ಪ್ರಮಾಣ ಪತ್ರ

ಶ್ರೀ Professor Dipankar Chatterji , ಇವರು 1000.00 ರೂಪಾಯಿಗಳನ್ನು ನಿಗದಿತ ಮುದ್ರಾಂಕ ಶುಲ್ಕವಾಗಿ ಪಾವತಿಸಿರುವುದನ್ನು ದೃಢೀಕರಿಸಲಾಗಿದೆ

ಪ್ರಕಾರ	ಮೊತ್ತ (ರೂ.)	ಹಣದ ಪಾವತಿಯ ವಿವರ
ನಗದು ರೂಪ	1000.00	Paid By Cash
ಒಟ್ಟು :	1000.00	

ಸ್ಥಳ : ಹೆಬ್ಬಾಳ

ದಿನಾಂಕ : 19/08/2014

ಉಪ-ನೋಂದಣಿ ಮತ್ತು ಯುಕ್ತ ಅಧಿಕಾರಿ

(ಹೆಬ್ಬಾಳ)

19 AUG 2014
ಹಿರಿಯ ಉಪನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ (ಹೆಬ್ಬಾಳ), ಬೆಂಗಳೂರು.

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WHEREAS the **SETTLOR** upon the recommendation of the Council of the Indian Academy of Sciences proposed the creation of a public charitable Trust to further the objectives as hereinafter set forth;

AND WHEREAS, the persons named hereinabove have agreed to become and act as the *First Trustees* as is testified by their joining in and executing these presents;

AND WHEREAS the Indian Academy of Sciences is a National Institution devoted to promote the progress and uphold the cause of science, both in pure and applied branches. The Council of the Indian Academy of Sciences in its meeting held on 7 December 2013 recommended the creation of a Trust having independent financial power and authority for expending the funds generated by it. The **SETTLOR** has, therefore proposed to create a Trust for encouraging capacity building, promoting outreach activities, as well as fostering innovation and excellence in Science and Technology in India. In addition, the Trust may undertake such other work and activities as are conducive to the attainment of the said purposes and the objectives as set forth hereinafter.

WHEREAS the **SETTLOR** by donating a sum of Rs. 1001/- (Rupees One Thousand One Only) creates a Trust by name **The Academy Trust (TAcT)** having its office situated at the Indian Academy of Sciences, C.V.Raman Avenue, Sadashivanagar, Bangalore-560 080 has set apart a sum of Rs.1001/- (Rupees One Thousand One Only) and more particularly described hereunder written and is desirous to settle the said amount upon the uses of Trust hereafter mentioned:

The **SETTLOR** proposes to act himself as one of the first trustees with the said **The Academy Trust (TAcT)**, Bangalore who have also to act as trustees of these Presents as is evidenced by their executing these Presents. Now THIS DEED WITNESSES that in consideration of the premises and to effectuate the said desire of the **SETTLOR**, he the **SETTLOR** has delivered and handed over himself to himself and the said,

1. President, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Dipankar Chatterji, the present incumbent.
2. Immediate Past President, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Ajay Kumar Sood, the present incumbent.
3. Treasurer, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor J. Srinivasan, the present incumbent.
4. Secretary, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Uday Maitra, the present incumbent.
5. Secretary, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Raghavan Varadarajan, the present incumbent.
6. Professor M.R.Satyanarayana Rao, Jawaharlal Nehru Centre for Advanced Scientific Research, Jakkur, Bangalore 560 064.

Chatterji

14ನೇ ಮುಖ್ಯದ 158 ದಸ್ತಾವೇಜಿನ 4 ನೇ ಪುಟ
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Print Date & Time : 19-08-2014 11:50:21 AM

ಹಿರಿಯ ಉಪನೋಂದಣಾಧಿಕಾರಿ ಗಾಂಧಿನಗರ (ಹೆಬ್ಬಾಳ), ಬೆಂಗಳೂರು.

ದಸ್ತಾವೇಜು ಸಂಖ್ಯೆ : 158

ಹೆಬ್ಬಾಳ ದಲ್ಲಿರುವ ಉಪನೋಂದಣಾಧಿಕಾರಿ ಗಾಂಧಿನಗರ ರವರ ಕಚೇರಿಯಲ್ಲಿ ದಿನಾಂಕ 19-08-2014 ರಂದು 11:40:33 AM ಗಂಟೆಗೆ ಈ ಕೆಳಗೆ ವಿವರಿಸಿದ ಶುಲ್ಕದೊಂದಿಗೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ವಿವರ	ರೂ. ಪೈ
1	ನೋಂದಣಿ ಶುಲ್ಕ	100.00
2	ಸೇವಾ ಶುಲ್ಕ	595.00
	ಒಟ್ಟು :	695.00

ಶ್ರೀ Professor Dipankar Chatterji ಇವರಿಂದ ಹಾಜರ ಮಾಡಲ್ಪಟ್ಟಿದೆ

ಹೆಸರು	ಫೋಟೋ	ಹೆಬ್ಬೆಟ್ಟಿನ ಗುರುತು	ಸಹಿ
ಶ್ರೀ Professor Dipankar Chatterji			

ಬರೆದುಕೊಟ್ಟಿದ್ದಾಗಿ ಒಪ್ಪಿರುತ್ತಾರೆ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು	ಫೋಟೋ	ಹೆಬ್ಬೆಟ್ಟಿನ ಗುರುತು	ಸಹಿ
1	Professor Dipankar Chatterji . (ಬರೆದುಕೊಡುವವರು)			

ಸಬ್ ರಜಿಸ್ಟ್ರಾರ್
19 AUG 2014
ಹಿರಿಯ ಉಪನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ (ಹೆಬ್ಬಾಳ), ಬೆಂಗಳೂರು.

ಸಬ್ ರಜಿಸ್ಟ್ರಾರ್
19 AUG 2014
ಹಿರಿಯ ಉಪನೋಂದಣಾಧಿಕಾರಿ
ಗಾಂಧಿನಗರ (ಹೆಬ್ಬಾಳ), ಬೆಂಗಳೂರು.

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7. Professor S. Chandrasekaran, Indian Institute of Science, Bangalore 560 012.
8. Professor Ramakrishna Ramaswamy, University of Hyderabad, Hyderabad 500 046.
9. Dr S. Sivaram, National Chemical Laboratory, Pune 411 008.
10. Dr Chandrima Shaha, National Institute of Immunology, New Delhi 110 067.

as trustees absolutely and forever and duly endorsed in their names and the trustees hereby declare that they have accepted and received the said amount of Rs. 1001/- (Rupees One Thousand One Only) before the execution of these Presents upon the Trust and Trustees and subject to the powers, provisions, agreements and declarations hereinafter declared contained of and concerning the same.

NOW THEREFORE THIS DEED OF DECLARATION OF TRUST WITNESSTH AS UNDER:

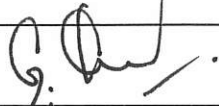
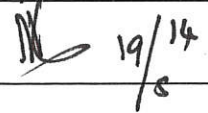
1. The Trust hereby created shall be called and known as **The Academy Trust (TACT)**.
2. It is hereby agreed and declared that the trustees shall hold and stand possessed of the said amount of Rs. 1001/- (Rupees One Thousand One Only), Hereinafter referred to as the Trust Property.
3. The registered office of the Trust shall be situated at The Indian Academy of Sciences, C.V. Raman Avenue, Sadashivanagar, Bangalore 560 080.
4. **Trust Fund and Properties of the Trust:** The **Trust Fund** shall comprise the amount of Rs. 1001/- (Rupees One Thousand One Only) settled initially on this day and any further addition that may be made by the **SETTLOR**, well-wishers, donors, donor institutions, philanthropists, industries, entrepreneurs, private and public enterprise companies, NGOs, and other such individuals, entities and bodies. All such additions and donations whether movable or immovable shall be accepted and held as corpus by the Trustees of the Trust and shall be subject to any tax or fiscal law for the time being in force. The Trustees shall have the power to accept the donations for the Trust and apply those donations on the objects of the Trust as per the provisions of the Trust Deed. The funds of the Trust shall be applied in perpetuity for pursuing the objectives of the Trust, by the Board of Trustees, as described in clause 8.

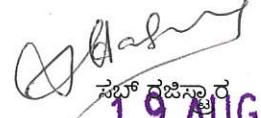
The Trust shall be an irrevocable public charitable trust for the benefit of all persons belonging to all communities. The Trustees shall stand possessed of the corpus endowed in the Trust and such other properties (both movable and immovable) as may be acquired from time to time by the Trust, by purchase, exchange, grant, allotment, subscription, endowment, donation, contribution, or in any manner to whatsoever (all of which shall be designed as Trust properties) on the Trust herein mentioned

5. **Vesting of Trust properties:** The Trust properties shall vest in the Public Trust and shall be administered and managed by *Chair and Board of Trustees* of the Trust and its successors in the Trust subject to and in conformity with the provisions of pertinent Acts, as also by giving due consideration to the resolutions of the Board of Trustees for carrying out the objectives of the Trust and all benefits accruing or received from the Trust shall be used for such purposes and in accordance with the directions contained in this deed.

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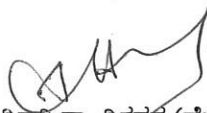
ಗುರುತಿಸುವವರು

ಕ್ರಮ ಸಂಖ್ಯೆ	ಹೆಸರು ಮತ್ತು ವಿಳಾಸ	ಸಹಿ
1	G Chandramohan Indian Academy of Sciences, Bangalore	
2	N. Maheshchandra Indian Academy of Sciences, Bangalore	 19/14


19 AUG 2014

ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಗಾಂಧೀನಗರ (ಹೆಚ್ಚುವರಿ), ಬೆಂಗಳೂರು.

"THE ACADEMY TRUST (TACT)"

 4 ನೇ ಪುಸ್ತಕದ ದಸ್ತಾವೇಜು ನಂಬರ HBB-4-00158-2014-15 ಆಗಿ ಸಿ.ಡಿ.ನಂಬರ HBBD160 ನೇ ಧರಲ್ಲಿ ದಿನಾಂಕ 19-08-2014 ರಂದು ನೋಂದಾಯಿಸಲಾಗಿದೆ  ಉಪನಿರ್ದೇಶಕರು ಗಾಂಧೀನಗರ (ಹೆಚ್ಚುವರಿ)	
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19 AUG 2014

Designed and Developed by C-DAC, ACTS, Pune

ಎಂ. ಪುಟ್ಟಪ್ಪಾಮಿ
ಹಿರಿಯ ಉಪನಿರ್ದೇಶಕರು
ಗಾಂಧೀನಗರ (ಹೆಚ್ಚುವರಿ), ಬೆಂಗಳೂರು.

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6. **Trust Fund:** The said sum of Rs. 1001/- (Rupees One Thousand One Only) and the investment representing the same as initial deposit as aforesaid shall be called "**The Academy Trust (TAcT)**" which will be referred to hereinafter as "The Trust Fund". There shall be added to the Trust fund all the contributions and additions which are referred to in clause 4 above as also the income of the Fund generated from out of the investments.

7. **Employment and investment of the Trust fund:** The moneys from time to time in the hands of the Trustees upon the Trust hereof, and not immediately required for making any payment pursuant to the Trustees, and may at any time be invested as may seem expedient to the Trustees. The provisions of section 20 of the Indian Trusts Act, 1882 shall not apply to this Trust.

8. **The objectives of the Trust**

- Encouraging capacity building,
- Promoting outreach activities particularly in areas where there is an urgent need for intervention.
- Fostering innovation and excellence in Science and Technology in India.
- To collaborate with other organizations for implementing joint programs to expand and improve research and education in science and engineering.
- And generally to carry-out all such acts deeds and things which are incidental to, or necessary for the promotion of the aforementioned objects. That in case any of the objects of the Trust are held to be non-charitable within the meaning of section 2(15) of the Indian Trust Act, 1884 or any statutory modification(s) thereof, the Trustee(s) shall not carry out such objectives.

9. **The following provisions shall apply to the meetings and proceedings of the Trustees:**

- The following persons, having consented to act as Trustees will be the *first Trustees* of the Trust in their personal capacities and will continue to be so while they hold the post shown against their names or up to their tenure, as the case may be and another member is nominated in their place by the *Board of Trustees*:
 - President, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Dipankar Chatterji, the present incumbent.
 - Immediate Past President, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Ajay Kumar Sood, the present incumbent.
 - Treasurer, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor J. Srinivasan, the present incumbent.
 - Secretary, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio Trustee*, Professor Uday Maitra, the present incumbent.



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ಎಂ.ನೋ., ಗಾಂಧೀನಗರ (ಹಬ್ಬಾಳ), ಬೆಂಗಳೂರು.

- v) Secretary, Indian Academy of Sciences, C V Raman Avenue, Sadashivanagar, Bangalore 560 080, *ex-officio* Trustee, Professor Raghavan Varadarajan, the present incumbent.
- vi) Professor M.R.Satyanarayana Rao, Jawaharlal Nehru Centre for Advanced Scientific Research, Jakkur, Bangalore 560 064.
- vii) Professor S. Chandrasekaran, Indian Institute of Science, Bangalore 560 012.
- viii) Professor Ramakrishna Ramaswamy, University of Hyderabad, Hyderabad 500 046.
- ix) Dr S. Sivaram, National Chemical Laboratory, Pune 411 008.
- x) Dr Chandrima Shaha, National Institute of Immunology, New Delhi 110 067.
- b. The *Chair* of the Trust shall preside over all the meetings of the Trustees. In his/her absence, the remaining Trustees shall elect the *Chair* for the said meeting.
- c. The tenure of the Trustees shall not exceed *three years*. However, the Board of Trustees shall have the power to extend the tenure of such trustee/s if it resolves to do so.
- d. *Appointment of new trustees*: The Board of Trustees shall nominate and invite person/persons from amongst the Fellowship of the Indian Academy of Sciences to be the other Trustees in place of the Trustees who have ceased to be a Trustee/Trustees on account of resignation or otherwise, for such period, as they may deem fit and proper.
- e. A member of the Board of Trustees or a Trustee may be removed provided the majority of the members of the Board of Trustees give their consent to such removal of such member.

10. Functionaries of the Trust:

- i) *The Board of Trustees* of the Trust shall not be less than *five* or more than *12 (Twelve)* at any time and trustees shall be chosen both from the Council and the Fellowship of the Academy.
- ii) The President of the Academy shall be the *Chair* of the Trust. *Four* of the trustees shall be *ex-officio* members of the Council of the Indian Academy of Sciences and the remaining Trustees shall be nominated from amongst the Fellowship of the Indian Academy of Sciences by the Chair of the Trust and they collectively shall constitute the "*Board of Trustees*".
- iii) In addition to the *Chair* of the Trust, there shall be a *Secretary* and a *Treasurer* for carrying out the functions related to the Trust.
- iv) The President of the Indian Academy of Sciences shall be the *ex-officio* *Chair* of the Trust. Of the remaining members of the Trust there shall be a *Secretary* and a *Treasurer* for carrying out the functions related to the Trust. The Board of Trustees shall have the power to fix the duties, responsibilities, powers, period of office of the *Chair* so

appointed. The Board shall also have the power to remove such person from the office of the *Chair* even prior to the expiry of office, by a resolution passed and accepted by a majority of members of the Board as constituted from time to time. The *Chair* shall have a casting vote in the event there is equality of votes in any meeting of the Board of Trustees.

- v) Any action or decision taken or activities carried out by the Trustees shall not become void or invalid during the period of vacancy of any Trustee by death, retirement, resignation or incapacitation.
- vi) *The Board of Trustees* shall have the power to appoint subcommittees comprising the members and if needed, eminent external members for advising the members on the matters relating to the attainment of objects of the Trust.
- vii) In case of urgency of the matter, the *Chair* may circulate the matter for the opinion of all the Trustees and the decision taken according to the opinion of the majority of the Trustees, which majority shall include the vote of the *Chair*. Any decision taken on such circulation shall have the same effect and be binding on all the Trustees as if decided in a meeting duly convened. The *Chair* shall place such decision taken in the next meeting of the Trustees for their information.

11. Achievement of the objectives: The Trust fund is to be regarded as primarily established for achieving the objectives specified in clause 8 above.

12. Announcement of pre-requisites: The Trustees shall deliberate and take decisions from time to time as regards the pre-requisites of the beneficiaries of the Trust including *Students, Teachers, Science and Technology Personnel and Institutions*.

13. Discretion of Trustees: For pursuing the *Objectives* of the Trust, financial and administrative, the *Board of Trustees* may exercise their discretion after considering all the relevant circumstances in a meeting held in the manner provided under this deed. All the powers vested in the Board shall be exercised by a resolution passed at a meeting of the Board and circulated among the members of the Board and accepted by a majority of members.

14. MANAGING TRUSTEE

- (a) The day-to-day administration of the Trust shall be looked after by the *Managing Trustee* under the guidance, control and supervision of the *Board of Trustees*.
- (b) The *Board of Trustees* shall nominate one amongst the Trustees to be the *Managing Trustee*, who shall hold office for such period, as may be decided by the Board of Trustees, normally for a *three years'* period.
- (c) The Managing Trustee shall perform all functions, discharge such duties as or specifically entrusted to him/her in writing by the Board of Trustees.



15. Meeting of the Trustees:

- (i) The Trustees may meet from time to time for the dispatch of business of the Trust, adjourn, and otherwise regulate their meetings as they think fit, and may determine the quorum necessary for the transactions of business. Until otherwise determined *five* trustees shall form a *quorum*. The Secretary/Managing Trustee, with the consent of the *Chair*, may at any time convene a meeting of the Trustees. Questions arising at any meeting shall be decided by a majority of votes, and in case of an equality of votes the *Chair* (or one who chairs the meeting in the absence of the *Chair*) shall have a second or casting vote. No proceedings of the meeting or resolution passed in the meeting shall become invalid for the reason that the notice of the meeting was not received by any of the members of the *Board of trustee* in time.
- (ii) A special meeting of trustees may at any time be summoned by at least *one third* of the total number of trustees upon fifteen days' notice being given to the other Trustees of the business to be transacted or discussed.
- (iii) A notice of *15* days shall be given for convening all the meetings. In case of emergency, a meeting of the Trustees may be called at a shorter notice.
- (iv) A trustee shall cease to be a Trustee if he/she is absent from the meeting of the Trustees for more than four successive meetings without sufficient reasons and in such case another Trustee shall be appointed in his place by the *Board of Trustees* for a period applicable.
- (v) A meeting of the Trustees for the time being at which a quorum is present shall be competent to exercise all or any of the authorities, powers and discretions vested by this deed in the Trustees generally.

16. Minutes of the meetings: The Trustees shall cause proper minutes to be kept and entered in a book provided for the purpose, of all their resolutions and proceedings of meetings, and any such minutes of any meeting purporting to be signed by the *Chair* of the meeting or the *Chair* of the next succeeding meeting shall be prima facie evidence of the matters stated in such minutes. The minute book shall comprise: (i) A clear report of the proceedings of each of the meeting. (ii) A copy of each notice, convening the meeting and of each circular on which decision has been taken.

The minutes shall be recorded by the Secretary as far as possible on the very day of meeting in the presence of members present and their signatures obtained.

The minutes shall be read over to the members at the next meeting and when confirmed, shall be signed by the *Chair* of such meeting. In case of difference of opinion at the time of confirmation of proceeding of previous meeting, the minutes shall be confirmed according to majority.

17. Costs of maintenance: The Trustees shall out of the income of the Trust fund pay in the first instance all costs, charges and expenses incidental to the administration of the Trust fund and shall apply the balance for pursuing the objectives of the Trust fund specified in clause 8.

[Signature]

- 18. Books of accounts and registers:** The trustees shall maintain proper books of accounts of the receipts and expenditure and balance sheet relating to the maintenance of the Trust fund as required for a proper audit and registers of the trustees and the contributions to the Trust fund as specified in clause 4 and of the recipients of the allowances from the Trust fund and get the same duly audited. The Books of accounts and registers shall be kept at all times at the registered office of the Trust.
- 19. Amendments:** The Trustees may amend, alter and effect any change to any of the clauses herein contained and make new ones in place of the existing clauses or in addition to all or any of the present clauses so however as not to affect the objectives of the Trust Fund specified in clause 4 for the existence and continuance of the Trust.
- 20. Discretion and Indemnity:** The Trustees shall have absolute discretion vested in them, in managing the Trust fund for pursuing the objectives of the Trust and shall be entitled to be indemnified against any expenses and losses incurred or suffered or any payments made by them in the administration of the Trust and such expenses, losses and payment shall be borne by the Trust and none of the members of the *Board of Trustees* shall be in any way be personally liable or responsible for the same except in case of fraud.
- 21. Powers of Board of Trustees:** To carry on all its activities in furtherance of its aims and objects, the said Trust shall have power to raise funds through various sources including the sources specified below:
- a) By accepting donations from companies, firms, societies, and other associations and individuals both in India and abroad.
 - b) By accepting grants from the State Government, Central Government, Local Authorities, Public Bodies, Corporation, Societies, Other Institutions and organizations of public and private nature.
 - c) To acquire and hold moveable and immovable properties by purchase, lease or otherwise and/or erect, construct enlarge, alter or maintain any land and building; in furtherance of the objects of the Trust.
 - d) To deal with or dispose of any kind of property, moveable and/or immovable to let, mortgage, sale or dispose of the property movable or immovable, completely or any part thereof.
 - e) To appoint staff, consultants etc., required for administering and managing the affairs of the Trust upon such terms and conditions as shall be determined by the Board of Trustees and to pay out of the Trust funds salaries, and other expenses relating to the Trust and its activities and other affairs.
 - f) To frame and/or adopt in such manner, the byelaws, rules and regulations of the Trust.
 - g) To utilize all its income and property in such manner as it deems fit and proper for promotion of aims and objects of the *Board of Trustees* and to carry its activities for the welfare of public at large.



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- h) To invest the funds of the Trust and to alter or vary the investments or sell the investments subject to compliance of the Income Tax Act, 1961.
- i) To represent the Trust before any Court, authority or tribunal.
- j) To execute or negotiate papers and documents, to receive monies or other assets and to grant receipts and discharges.
- k) To sign, verify all pleadings, petitions and application of all kinds, to compromise or refer to arbitration any claim by or against the Trust, to engage lawyers and to take all such necessary steps.
- l) To borrow for the purposes of the Trust on the credit of the Trust with or without charge and responsibility upon the assets of the Trust.
- m) To meet all the necessary expenses incurred or to be incurred in connection with the management of the Trust.
- n) To open and maintain accounts of any nature in any bank/s and authorize operations of the said accounts by the Managing Trustee or any other members of the *Board of Trustees*, jointly or severally.
- o) To do all such other acts, deeds, matters and things which may be deemed necessary for carrying out the objects of the Trust or its administration.
- p) The *Board of Trustees* shall also have the power to delegate all or any of the powers vested in them by these presents to any other Trustee/s or any other person/s for the purpose of managing and exercising such powers.
- q) The powers enumerated in this Deed shall continue to be exercised by the *Board of Trustees* subject to their satisfying the conditions laid down under sections 11, 12 and 13 of the Income Tax Act, 1961 as amended from time to time so that the income of the Trust will be exempted from the income-tax for each and every assessment year under relevant sections.

22. The Board of Trustees shall have the following responsibilities amongst others:

- a) To supervise, administer and manage the overall affairs of the Trust.
- b) To appoint committees or sub-committees which shall be directly responsible to the *Board of Trustees*.
- c) To delegate to such committees or sub-committees such of its duties as it deems fit for carrying on effectively any activity of the Trust.
- d) The Board of Trustees shall have all such powers and shall perform all such duties and perform all such functions as are conferred upon it by the provisions of this deed.



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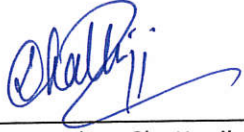
- e) The Chair and other office bearers of the Trust shall discharge all such functions and perform all such duties and execute all such powers as are conferred upon it by any of the provisions of this Trust.
- f) All acts and proceedings of the Trust shall be taken and conducted in the name of the Trust only.
- 23. Amendments:** The Trustees may at any time make such arrangements, draw up such scheme or schemes and make and frame such bye-laws, rules and regulations not inconsistent with the main objects of the Trust, as they shall, think fit for the administration and management of the activities, affairs and properties of the Trust. However, such amendments shall not include the power to amend the basic structure of this deed.
- 24. Payment of management expense:** The trustees shall out of the income and interest of Trust properties in the first instance pay all the rents, taxes and assessments and other necessary outgoings and in the next place all the proper costs, charges and expenses of the incidental to the administration and management of the Trust properties as well as the cost of current and ordinary repairs to and the upkeep of the immovable properties, preservation and safe custody of movable properties belonging to the Trust, if any.
- 25. Register of movable and immovable properties of the Trust:** The trustees shall maintain in a register a complete list of movable and immovable properties of the Trust and shall have it up-to-date by making additions and alterations in the same if any, and when new properties are purchased or acquired, or disposed of by the trust. Such first list in register shall be signed by all the trustees and new trustees appointed. Trustees shall specifically verify list of register at least once in two years.
- 26. Assets of the Trust after its dissolution:** The Trust may be dissolved at any time if the majority of the members of the Board of Trustees decide to extinguish the Trust. If upon dissolution of the Trust, there shall remain, after the satisfaction of all its debts and liabilities, any property or assets whatsoever, the same shall not be paid or distributed among the members of the Trust or any one of them, but shall be given to the Indian Academy of Sciences by writing a letter to the President of the Indian Academy of Sciences at the time of dissolution or in default thereof.
- 27. Indian Trusts Act 1882 to apply:** In respect of eventualities not provided for in this deed of **Trust**, the concerned provisions of the Indian Trusts Act 1882 shall apply to deal with such eventualities as may arise in course of working of this Trust.
- 28. Miscellaneous:** Members of the *Board of Trustees* shall discharge their responsibilities in a purely honorary capacity without financial remuneration.
- 29. Dispute Resolution:** In the event of any dispute arising out of or in connection with any matter relating to the Trust or this Deed amongst the Trustees, the same shall be referred to and resolved by binding arbitration of a sole arbitrator in accordance with the Arbitration & Conciliation Act, 1996. The place of arbitration shall be Bangalore, India and the arbitration proceedings shall be conducted in English. The award passed by the arbitrator shall be binding upon the parties. Subject to the above, the Courts at Bangalore shall have exclusive jurisdiction over any matter arising from this Deed.

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30. The *Founding members* of the Trust in their meeting held on 9th June 2014 authorized the *Chair* of the Trust – Prof. Dipankar Chatterji for the registration of the Deed of Declaration of the Trust with the competent authority.

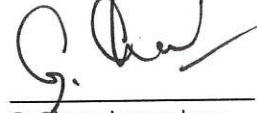
In witness whereof the Founder/Trustee and the Trustees have set and subscribed their hand to this Deed of Trust on the day, month and year first above mentioned.

IN WITNESS WHEREOF THE PARTIES HITHERTO HAVE HEREUNTO SET THEIR RESPECTIVE HANDS THIS NINETEENTH DAY OF AUGUST TWO THOUSAND FOURTEEN.

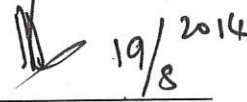


Professor Dipankar Chatterji

Witness:



1. G Chandramohan
Executive Secretary,
Indian Academy of Sciences



19/8/2014

2. N Maheshchandra
Dy. Executive Secretary,
Indian Academy of Sciences

Drafted by



V-SubbarReddy
Advocate.